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File No.: EXP202308507

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On June 16 and 17, 2023, two complaints were filed with the Spanish Agency for Data Protection against UNIDENTIFIED RESPONSIBLE PARTY.

The reasons for the complaint are as follows:

The complainant states that five years ago they reported to the National Police a person who harasses them and who currently publishes in chats their phone number along with web links to images of them naked and their personal data. In the images, all very similar, a man is seen in front of a mirror photographing himself semi-nude showing his penis.

Additionally, a text is published that includes their personal data: full name, ID number, date and place of birth, postal address, and place where they study, along with details of their alleged sexual life.

The affected party expresses fear that someone may come to their home and threaten their physical integrity. They indicate the following internet addresses:

***URL.1

***URL.2

***URL.3

***URL.4

***URL.5

***URL.6

***URL.7

***URL.8

***URL.9

***URL.10

***URL.11

***URL.12

***URL.13

***URL.14

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***URL.15

***URL.16

***URL.17

***URL.18

***URL.19

***URL.20

***URL.21

***URL.22

***URL.23

***URL.24

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), on June 20, 2023, in procedure AT/03206/2023, the Spanish Agency for Data Protection agreed to carry out investigative actions regarding the reported facts.

THIRD: On June 20, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed was

admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

The complainant knows the author of the publications whom they reported to the police 5 years before filing the complaint that led to these proceedings; however, in the complaint, they do not inform of their identity nor do they present the report to which they refer.

As of June 21, 2023, the claimed content is only found at the following addresses of the website <https://imgbb.com>:

***URL.4

***URL.5

***URL.6

***URL.7

***URL.8

***URL.9

***URL.10

***URL.11

***URL.12

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***URL.13

***URL.14

***URL.15

***URL.16

***URL.17

***URL.18

***URL.19

***URL.20

***URL.21

***URL.22

***URL.23

***URL.24

On June 22, 2023, it was verified that the publications subject to the complaint were no longer available, without this inspection having requested their removal from the website's responsible parties.

This may be due to the complainant exercising their right to erasure and it being attended to, or to the scheduled deletion of the images that may be set when uploading them to the website.

The complainant was informed about the deletion of the claimed content at the indicated contact email address, but the notification was not collected.

The complainant was requested to identify the person or persons to whom they sent or with whom they shared the images mentioned in the complaint and who was reported in the past, and any other data or indication that could indicate the authorship of the publications; the notification was also not collected.

A new request for information was made to the complainant asking them to identify the person or persons to whom they sent or with whom they shared the images mentioned in the complaint and who was reported in the past, a copy of the report they refer to in their complaint, and any other data or indication that could indicate the authorship of the publications; no written response has been received in this Agency, although it has been verified that the notification was collected by the complainant on

January 22, 2024.

Given that the images can be published anonymously, that the ownership of the website is not recorded, and the lack of collaboration from the complainant, there are no indications or the necessary data to carry out additional actions.

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I

Competence

In accordance with the functions conferred upon each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Legality of Processing

The first paragraph of Article 6 of the GDPR establishes the following:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

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III

Conditions for Consent

Regarding the conditions for consent, Article 7 of the GDPR states:

"1. When the processing is based on the consent of the data subject, the controller shall be able to demonstrate that the data subject has consented to the processing of their personal data.

2. If the consent of the data subject is given in the context of a written declaration that also concerns other matters, the request for consent shall be presented in such a way that it is clearly distinguishable

from the other matters, in an intelligible and easily accessible form, and using clear and plain language. No part of the declaration which constitutes an infringement of this Regulation shall be binding.

3. The data subject shall have the right to withdraw their consent at any time. The withdrawal of consent shall not affect the lawfulness of processing based on consent before its withdrawal. Before giving consent, the data subject shall be informed thereof. It shall be as easy to withdraw consent as to give it.

4. When assessing whether consent has been freely given, account shall be taken, as far as possible, of whether, among other things, the performance of a contract, including the provision of a service, is conditional on consent to the processing of personal data that is not necessary for the performance of that contract."

IV

Conclusion

The content claimed was removed from the websites indicated in the complaint five days after the submission of the complaint without action by this inspection.

After sending two notifications to the complainant requesting information that could provide clues about the authorship of the publications, the complainant did not collect the first notification nor respond to the second, which was collected in this case.

It has been verified that the uploading of images on the website where they were found is done anonymously, and given the lack of cooperation from the complainant, the necessary data to determine the authorship of the claimed facts is not available.

Therefore, based on the information provided in the previous paragraphs, it has not been possible to determine the identity of the data controller.

Thus, as it has not been possible to attribute responsibility for the processing as indicated, the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE these proceedings.

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SECOND: NOTIFY the present resolution to the claiming party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

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